

18-01-2025

Ex. 2589/2023

DHR called out absent. No representation.

Call at 2.45 P.M.

The case again called at 5.00 P.M.

DHR called out absent. No representation.

In this case the DHR has not furnished the sufficient number of copies to issue process to the JDRs as contemplated under 39 and 40 of the Civil Rules of Practice as well as Order 5 of the CPC, in spite of specific order passed by this court on 07-03-2024, 02-08-2024 and 06-11-2024 and even there is no representation when the case is called out that shows the DHR is not interested in prosecuting the case. Hence, the following:

ORDER

The execution petition is hereby dismissed for default.

II Addl. City Civil Sessions Judge
and Spl Judge, City Civil Court
Bengaluru.